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CASE NAME:

Stephen

Paschal, et al. v. Yong Jiang, et al.

Defendants' Partial Demurrer or,

Alternatively, Motion to Strike Second Amended Complaint as to Cause of Action
for Premises Liability

TENTATIVE

RULING

The Court OVERRULES Defendants' Partial

Demurrer or, Alternatively, Motion to Strike Second Amended Complaint as to

Cause of Action for Premises Liability. Defendants do not need to file an

Answer to the Second Amended Complaint given their Second Amended Answer filed
on July 15, 2026.

Plaintiffs

are ordered to give notice of the Court's ruling within five calendar days of
this order.

BACKGROUND

This is a

motorcycle accident case. On December 23, 2025, plaintiffs Stephen Paschal

(Stephen)¹ and Ashley Paschal (collectively, Plaintiffs) filed this

action. On March 6, 2026, Plaintiffs filed the First Amended Complaint (FAC)

against defendants Yong Jiang, Yinglin Zhao, and Deshan Zhao (collectively,

Defendants) and Does 1 to 50, alleging causes of action for general negligence, premises liability, and loss of consortium. On April 6, 2026, Defendants filed an answer as to the general negligence and loss of consortium claims. On April 13, 2026, Defendants filed an amended answer as to the general negligence and loss of consortium claims.

On May 26, 2026, after the Court sustained Defendants' demurrer to the FAC, Plaintiffs filed the operative Second Amended Complaint (SAC) against the same Defendants and alleging the same causes of action.

On July 14, 2026, Defendants demurred to the SAC's cause of action for premises liability. On August 13, 2026, Plaintiffs filed their Opposition. On August 19, 2026, Defendants filed their Reply.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

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demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

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demurrer can be utilized where the “face of the complaint” itself is incomplete or discloses some defense that would bar recovery. (Guardian North Bay, Inc. v. Superior Court (2001) 94 Cal.App.4th 963, 971-972.) The “face of the complaint” includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94; see also Barnett v. Fireman’s Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits”].)

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demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046-1047.)

PRELIMINARY ISSUES

While Defendants styled this motion as a demurrer or a motion to strike in the alternative, the Court will treat it as a demurrer since motions to strike do not lie as to a cause of action. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 529 [failure to state a cause of action is grounds for a demurrer, not a motion to strike].)

The Court also notes that Plaintiffs’ Opposition improperly attributes the following quotation to Davert v. Larson (1985) 163 Cal.App.3d 407 (Davert): “a property owner or one with control over land where animals are kept ... a duty of reasonable care to prevent foreseeable harm from animals escaping onto public roads.” (Opp., 6:23-26.) That quotation is nowhere to be found in Davert. The Court will discuss this further with Plaintiffs’ counsel at the hearing on this Demurrer.

DISCUSSION

Meet and Confer

As noted in the Court’s tentative ruling for the prior demurrer, Defendants were required to meet and confer in person, by telephone, or by video conference before

bringing this demurrer per Code of Civil Procedure section 430.41, subdivision (a). (Code Civ. Proc., § 430.41, subd. (a).) Defendants failed to meet and confer by any of those methods. (Lee Decl., ¶¶ 2-3.) Nevertheless, failure to adequately meet and confer is not grounds for overruling a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).) The Court admonishes Defendants to comply with the Code of Civil Procedure going forward.

Second Cause of Action – Premises Liability

“The elements of a cause of action for premises liability are the same as those for negligence. Accordingly, the plaintiff must prove, a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.)

Defendants demur to the Second Cause of Action for premises liability under Code of Civil Procedure section 430.10, subdivision (e), contending it fails to state facts sufficient to constitute a cause of action. Defendants argue that the SAC alleges the injury occurred on a public highway not under their control, and that premises liability requires ownership, possession, or control over the property where the injury occurred. Defendants further argue that the allegations regarding the dog’s propensity to leave and the absence of fences, gates, or a leash describe a failure to restrain and control an animal rather than a dangerous condition of, or negligent management of, the real property. Defendants assert that the authorities Plaintiffs rely on (Davert, Curtis, and Pepper) address general negligence rather than premises liability, and that the premises claim is duplicative of the general negligence claim to which Defendants have not demurred.

In opposition, Plaintiffs argue that premises liability does not require control over the location of the injury, only control over the property where the injury-causing instrumentality was kept, and that a landowner’s duty extends to off-site harm caused by conditions on the controlled premises. Relying on Kesner v. Superior Court and Sprecher v. Adamson Companies, Plaintiffs contend the SAC alleges Defendants owned or controlled the premises and the aggressive dog, failed to secure the premises (no fence or gate) or restrain the dog, and thereby exposed motorists on the adjacent roadway to an unreasonable risk of injury. Plaintiffs argue

these are ultimate facts sufficient at the pleading stage, that the SAC cures the deficiency the court identified in the FAC by detailing how the incident occurred, and that only the face of the pleading may be considered on demurrer. Plaintiffs further argue that redundancy is not a permissible ground for demurrer or a motion to strike.

In reply, Defendants contend that the SAC retains the same core theory as the FAC, i.e., a failure to restrain and control the dog, and that adding allegations about the absence of a leash, fence, or gate does not convert animal-control negligence into negligent management of real property. Defendants argue the SAC pleads no facts showing why the absence of a barrier rendered this residential property unreasonably dangerous, that any barrier was defective, or that reasonable management required a specific enclosure, and that the “knew or should have known” allegation and undifferentiated allegations against all defendants remain conclusory. Defendants distinguish Kesner as involving asbestos used and maintained on the property and Davert as involving ordinary negligence duty already captured by the general negligence claim, and argue neither supports a separate premises liability claim on these facts. Defendants contend the premises liability claim adds nothing distinct from the general negligence claim, which is not challenged, so Plaintiffs suffer no prejudice.

The Court finds the SAC alleges sufficient facts to state a cause of action for premises liability. First, a “landowner’s duty of care to avoid exposing others to a risk of injury is not limited to injuries that occur on premises owned or controlled by the landowner. [Citations.] Rather, the duty of care encompasses a duty to avoid exposing persons to risks of injury that occur off site if the landowner’s property is maintained in such a manner as to expose persons to an unreasonable risk of injury offsite. [Citations.]” (Kesner v. Superior Ct. (2016) 1 Cal.5th 1132, 1159 (Kesner), internal quotation marks omitted.) This duty extends to escaping animals. (Id. at p. 1160.) Thus, the allegation that Plaintiff Stephen’s injury occurred on a public highway does not undermine this cause of action. (SAC, ¶ Prem.L-1.)

Second, the allegations that Defendants failed to provide a property enclosure for the dog, such as a gate or fence, and that Defendants knew of the dog’s propensity to enter the adjacent highway, are sufficient at the pleading stage to show that Defendants may have been negligent in the management of the property and its causal connection to the dog’s entry onto the highway. (SAC, Attach. 3; see also Code

Civ. Proc., § 452 [“In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties”].) Whether the lack of fencing rendered the property unreasonably dangerous and caused the dog to enter the highway is a factual question not resolvable on demurrer. (See *M.F. v. Pac. Pearl Hotel Mgmt. LLC* (2017) 16 Cal.App.5th 693, 703 [questions of fact generally not suitable for demurrer].) Defendants’ contrary factual assertions in their Demurrer are not alleged in the SAC and therefore outside the scope of this Demurrer. (*Donabedian*, supra, 116 Cal.App.4th at p. 994.)

Third, as to redundancy, Defendants did not raise that ground in their prior demurrer. (See Demurrer (4/2/26).) “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.” (Code Civ. Proc., § 430.41, subd. (b).) Even if Defendants had properly raised it before, Plaintiffs correctly argue that *Blickman Turkus* held that redundancy of a cause of action is not a basis for sustaining a demurrer. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 890; but see *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 [duplicative cause of action subject to demurrer].) Additionally, the California Supreme Court held in *Kesner* that general negligence and premises liability are different primary theories of liability. (*Kesner*, supra, 1 Cal.5th at p. 1158.)

Based on the foregoing, the Court **OVERRULES** the Demurrer.

CONCLUSION

The Court **OVERRULES** Defendants’ Partial Demurrer or, Alternatively, Motion to Strike Second Amended Complaint as to Cause of Action for Premises Liability. Defendants do not need to file an Answer to the Second Amended Complaint given their Second Amended Answer filed on July 15, 2026.

Plaintiffs are ordered to give notice of the Court’s ruling within five calendar days of this order.